Australian Government

# Notice of Intended Marriage

Please read all of the information in this form. You may need to refer back to these instructions as you complete this form. You may complete this form:

- Electronically by typing in the required information directly into the boxes below. You can print and sign a hard copy of the form or sign electronically in the presence of an authorised person.
- Manually by printing the form and completing the required information using **BLOCK LETTERS**.
- Please ensure you read the explanation in the Instructions for completing this form, including in relation to items 7 and 8.

## Privacy notice

- The *Marriage Act 1961* (Cth) (the Act) requires that a marriage shall not be solemnised unless certain personal information is provided in writing. This information is required in two forms: the *Notice of Intended Marriage* (under paragraph 42(1)(a) of the Act); and the *Declaration of No Legal Impediment to Marriage* (under paragraph 42(1)(c) of the Act). Together with the *Official Certificate of Marriage* (under paragraph 50(1)(b) of the Act), these three forms are referred to as the Documents.
- The Documents must be submitted by the authorised celebrant to the Registrar of Births, Deaths and Marriages (the Registry) in the state or territory where the marriage took place, within 14 days after the marriage ceremony is performed by an authorised celebrant.
- The Registry uses the information in the Documents to register the marriage. The Registry will use, store and disclose the personal information in accordance with the privacy laws of the state or territory in which the marriage took place.
- The Registry will provide the information contained in the *Notice of Intended Marriage* (the Notice) to the Australian Bureau of Statistics (ABS), which requests the information under the *Census and Statistics Act 1905.* The ABS only records non-identifying information from the Notice, and uses the information to generate national statistics on marriage and the family in Australia. The ABS does not retain identifying personal information.
- The Registry may provide the Documents to the Registrar of Marriage Celebrants and the Commonwealth Attorney-General's Department for purposes related to the functions of the Registrar of Marriage Celebrants. More information on how your personal information is managed by the Attorney-General's Department can be obtained from the department.
- For more information on how your personal information will be managed, or to access or correct the information contained in the register of marriages, please contact the Registry in the state or territory where your marriage will take or took place.

## Instructions for completing this form

### Requirements applying to ALL marrying couples

It is a criminal offence for a person to give the Notice to an authorised celebrant or to sign it if that person knows the Notice contains a false statement or an error or is defective (section 104, Marriage Act).

You must give this completed and signed notice to an authorised celebrant at least one month, and not more than 18 months, before your proposed marriage, unless a prescribed authority has agreed to shorten the notice period (section 42 of the Act). For a list of prescribed authorities, visit www.ag.gov.au/marriage.

### Instructions on specific items

**Where information is not known or cannot be obtained:** If you are unable, after reasonable inquiry, to state any information required in the Notice, you should write 'unknown' in the relevant space on the form and give the authorised celebrant a statutory declaration explaining why you are unable to provide the information. A statutory declaration is not required for **items 11 to 16**. These items relate to the parents of the parties to the marriage. Complete this section where applicable.

**Item 1:** It is up to each party to the marriage to decide how they want to describe themselves.

**Item 4:** This item is optional. It is up to each party to the marriage to decide whether they wish to complete the item. It is up to each party to the marriage to decide how they want to describe their gender if they choose to complete the item. Non-binary includes 'unspecified' or 'indeterminate' and people who do not exclusively identify as either female or male.

**Item 7:** The term 'conjugal status' means whether you have ever been legally married before. You should not include information about relationships other than married relationships. If your status is 'divorce pending', the divorce must take effect before the marriage can be solemnised.

**Item 8:** If you were born in Australia, your birthplace is the city or town and state or territory. If you were born outside Australia, your birthplace is the city or town, state or province (if applicable) and country.

## How to sign the Notice

The Notice lists who can witness the signatures of the marrying couple. The Notice must be signed in the physical presence of an authorised witness as specified (section 42 of the Act). Authorised witnesses are listed in the "Signatures of parties and witnesses" section of this form.

If a person is unable to sign the Notice at the time it is given to the authorised celebrant, the other person may sign the Notice and give it to the authorised celebrant. The person who has not signed the Notice must then sign the Notice in the physical presence of that celebrant or another authorised celebrant before the marriage can take place.

## Documents that must be provided to an authorised celebrant

**Items 19 to 20 and 25 to 28:** As well as the Notice, before the marriage can take place both parties must provide to the authorised celebrant (section 42 of the Act):

(a) evidence of the parties' date and place of birth, such as a birth certificate, official extract from a birth register or an Australian or overseas passport, and

(b) if a party is divorced or a party's last spouse died, evidence of divorce or death of that spouse.

**Items 21 to 24:** Before the marriage can take place, the authorised celebrant must also be satisfied that you are one of the people named in the Notice. Photographic evidence of identity such as a passport, a driver licence, proof of age card or an official identity card will assist the authorised celebrant to meet this requirement. If numerous ID Documents are sighted by the celebrant and are more than can be accomodated at Item 22, the celebrant may include details of the ID documents in an additional cover note to the Registry.

**Note: Items 25 to 28** should only be completed for parties who have been legally married previously. Where you have been legally married more than once, **item 25** (completed by the authorised celebrant) is the date on which your last spouse died, or the date on which the divorce or nullity order for your last marriage took effect.

## Additional requirements apply when a person to be married is under 18 years of age

A person under 18 years is not of marriageable age, and cannot be a party to a marriage, unless the person obtains an order from a judge or magistrate under section 12 of the Act.

In addition, if you have not turned 18 (unless you have previously been legally married), before the marriage can take place you must obtain and give to the authorised celebrant the necessary consents or dispensations required under the Act.

The authorised celebrant must record on the Notice that they saw the court order and the consents or dispensations. The authorised celebrant may also need to endorse the consent (subsection 9(2), Marriage Regulations 2017 (Cth)).

It is a criminal offence for a person to marry another person who is under 18 years of age without the order of a judge or magistrate made before the marriage (section 95 of the Act). Further, it is an offence under subsection 99(4) of the Act for a marriage celebrant to solemnise a marriage involving a minor without receiving the consents required under section 13 of the Act. Under no circumstances can two persons under 18 years legally marry.

| FOR CELEBRANT USE ONLY – BOOKING INFORMATION | |
|---|---|
| Time and Date | |
| Location | |

| For use only by Registries of Births, Deaths & Marriages |
|---|
| **Registered No.** |
| |

# Notice of Intended Marriage

Complete this form in **TYPE** or by using **BLOCK LETTERS**

## Details of the parties

| | PERSON 1 | PERSON 2 |
|---|---|---|
| 1. Description of parties | ☐ Partner ☐ Bride ☐ Groom | ☐ Partner ☐ Bride ☐ Groom |
| 2. Family name | | |
| 3. Given name(s) | | |
| 4. Gender (optional) | ☐ Female ☐ Male ☐ Non-binary | ☐ Female ☐ Male ☐ Non-binary |
| 5. Usual occupation | | |
| 6. Usual place of residence (full address) | | |
| 7. Conjugal status *(see page 2)* | ☐ Never validly married ☐ Widowed ☐ Divorced ☐ Divorce pending | ☐ Never validly married ☐ Widowed ☐ Divorced ☐ Divorce pending |
| 8. Birthplace *(see page 2)* | | |
| 9. Date of birth | | |
| 10. Are the parties related? | ☐ No ☐ Yes – state relationship: | |

## Details of the parties' parents

| | PERSON 1 | PERSON 2 |
|---|---|---|
| 11. Parent 1's full current name *(or write 'unknown')* | | |
| 12. Parent 1's full birth name *(or write 'unknown')* | | |
| 13. *If applicable:* Parent 2's full current name *(or write 'unknown')* | | |
| 14. *If applicable:* Parent 2's full birth name *(or write 'unknown')* | | |
| 15. Parent 1's country of birth *(or write 'unknown')* | | |
| 16. *If applicable:* Parent 2's country of birth *(or write 'unknown')* | | |

## Signatures of parties and witnesses

This Notice must be signed in the presence of an authorised witness. Persons who are authorised to witness the Notice are:

- if a party signs the Notice in Australia—an authorised celebrant, a justice of the peace, a barrister or solicitor, a medical practitioner, or a member of the Australian Federal Police or the police force of a State or Territory.
- if a party signs the Notice outside Australia—an Australian Consular Officer, an Australian Diplomatic Officer, a notary public, an employee of the Commonwealth authorised under paragraph 3(c) of the *Consular Fees Act 1955*, or an employee of the Australian Trade Commission authorised under paragraph 3(d) of the *Consular Fees Act 1955*.
  Note: For the definitions of Australian Consular Officer and Australian Diplomatic Officer, see section 2 of the *Consular Fees Act 1955*.

I have read this form's privacy notice and instructions for completion and hereby give notice of my intended marriage:

| | **PERSON 1** | **PERSON 2** |
|---|---|---|
| Signature of parties | | |
| Date | | |
| Full name of witness | | |
| Authorised witness *(see above)* | | |
| Signature of witness | | |

## To be completed by authorised celebrant before the ceremony

17. Full name of celebrant

18. Date notice received

| | **PERSON 1** | **PERSON 2** |
|---|---|---|
| 19. Evidence of date and place of birth *(see page 2)* | ☐ Birth certificate or official extract ☐ Australian passport ☐ Statutory declaration ☐ Overseas passport | ☐ Birth certificate or official extract ☐ Australian passport ☐ Statutory declaration ☐ Overseas passport |
| 20. Document number *(if any)* | | |
| 21. Identity confirmed *(see page 2)* | ☐ Confirmed | ☐ Confirmed |
| 22. Type of ID document provided *(see page 2)* | | |
| 23. Document number *(if any)* | | |
| 24. State, territory or country of issue | | |
| 25. Date last marriage ended *(if applicable)* | | |
| 26. Evidence sighted on how last marriage ended *(see page 2)* | ☐ Death ☐ Nullity ☐ Divorce | ☐ Death ☐ Nullity ☐ Divorce |
| 27. Death certificate number **OR** | | |
| 28. Court location *(if divorce or nullity)* | | |
| 29. Document referred to in s42(5A) of the Act provided to the parties | ☐ Person 1 | ☐ Person 2 |
| 30. If a party is under 18 years | ☐ Consents received | ☐ Court approval |

## Marriage on late notice (shortening of time)

31. Authority for marriage despite late notice *(shortening of time)*

☐ Not applicable ☐ Granted

**FOR OFFICIAL USE ONLY**
**To be used by a prescribed authority when granting a shortening of time**

## To be completed by authorised celebrant after the ceremony

Date marriage solemnised

At

Location, including suburb or town, city, state or territory and postcode where marriage solemnised

Ceremony used

Religious rites or civil ceremony according to the *Marriage Act 1961* (Cth)

Celebrant's signature

Celebrant's authorisation number

## Transfer of Notice of Intended Marriage to another celebrant

I confirm that in receiving this Notice, I am satisfied that the reasons for transfer are in accordance with s42(6) of the *Marriage Act 1961* (Cth):

Name of new celebrant

Authorisation number of new celebrant

Signature of new celebrant

Date of transfer